

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR N18
Hon. Scott A. Steiner

Date: August 12, 2026

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#	Case Name	Tentative
1.	2021-1222421 Richards vs. LoanDepot, Inc.	Upon reconsideration of its prior order taxing in their entirety the costs claimed by defendants loanDepot, Inc., loanDepot.com, LLC, and LD Holdings Group, LLC's for expert witness fees, the court awards Defendants expert witnesses' fees in the amount of \$35,123.75. [ROA ## 1425, 1401, 1393.] <i>Le Francios v. Goel</i> (2005) 35 Cal.4th 1094, 1108; <i>Marriage of Barthold</i> (2008) 158 Cal.App.4th 1301, 1307-1308. <u>Facts</u> Trial of this action began on 1/24/25. Prior to that, on December 17, 2024, the Court granted nonsuit as to Plaintiff's Retaliation Claim under Labor Code section 1102.5. (See ROA No. 1069.) This left the second, fifth, sixth, and tenth causes of action to be tried. Plaintiff did not pursue the tenth cause of action. After trial, the jury found that no harassment had taken place and found for Defendants on the remaining causes of action. [2/7/25]

Minute Order (ROA #1214); Special Verdict Form (ROA #1218); Jury Polling Sheet (ROA #1271).]

Judgment was entered on 3/6/25. [ROA # 1227.] Notice of entry was served electronically and by email on 4/2/25. [ROA # 1233.] Plaintiff has appealed from this judgment. [ROA #1240.]

Defendants filed and emailed their initial memorandum of costs, limited to costs incurred prior to nonsuit on the non-FEHA retaliation claim, on 4/17/25. [ROA # 1246.] Plaintiff filed her motion to strike or tax costs on 5/7/25. [ROA # 1263.] The court did not strike the memorandum of costs but did tax costs. [2/2/26 Minute Order (ROA #1393).] Plaintiff did not appeal from this order.

Defendants also filed a motion for attorneys' fees and costs on 6/2/25. [ROA # 1289.] This motion sought fees incurred solely on the FEHA claim that went to trial after the nonsuit and includes a separate memorandum of costs for costs incurred solely in connection with Plaintiff's remaining FEHA claim after nonsuit was granted on Plaintiff's section 1102.5 whistleblower retaliation claim. [David Decl. (ROA ## 1209, 1283), Ex. N.] The court granting the motion, awarding Defendants fees but not in the total amount they requested. [2/3/26 Minute Order (ROA #1395).] Plaintiff has appealed from this order. [ROA #1405.]

In her motion to strike or tax costs basically argued that Defendants were not entitled to recovery costs under FEHA because Plaintiff's case was not frivolous. Secondly, she argued that even if Defendants were entitled to recover certain costs some claimed were excessive or otherwise not recoverable.

Specifically, as to the \$116,772.93 in expert witness fees claimed by Defendants, Plaintiff argued:

As stated above, in the event that the Court determines that Plaintiff's action was frivolous Defendant may be entitled to costs of some expert fees. Here, Defendant has identified numerous experts of which many were not identified as witnesses to the litigation nor do their fees appear to be reasonable. The following expert witnesses identified in line 8(b) either appeared at trial or were identified for the litigation: Janey Seymour, Judy Ho, Paul Reardon, Eva Gentile, and NERA (Elizabeth Newlon), with a total cost of \$35,123.75. However the remaining expert witnesses identified by Defendants were never even deposed nor identified as witnesses, and in some instances their charges are

completely unreasonable, such as “SEDA” and Greenfield charging \$25,000 and \$10,000 respectively for 1 hour of work each. The witnesses that should be taxed are as follows: Investigative Research, Mark Kalish, Ellen Stein, IMS Legal, SEDA, Greenfield, Jason Koontz, and Upstream Intelligence for a total of \$81,649.18.

[Motion MPA (ROA #1263) at 7-8.]

Defendants’ opposition to Plaintiffs’ motion to strike or tax costs was essentially that none of the costs claimed were incurred on the FEHA claim but only on the Labor Code section 1102.5 whistleblower claim, so Defendants were entitled to recover the costs under Code of Civil Procedure sections 1032 and 1033.5 as prevailing party without a finding the claims were frivolous. [Opp. (ROA #1323) at 1-2, 5.]

Defendants did not provide any other information as to the basis for recovery of expert witness fees.

The court understood Plaintiff’s argument to be that if the court found her FEHA claims frivolous expert fees are recoverable, but she argues for a less amount than that sought. Govt. Code §12965(b). Otherwise, they are not recoverable under Code of Civil Procedure section 1033.5(b)(1).

Plaintiff’s motion to strike or tax costs and Defendants’ motion for attorneys’ fees and costs under FEHA were heard together and involved a number of moving parts and issues. As to the motion to tax, the issue of allocation was discussed but expert witness fees as costs was not specifically discussed.

The court took both motions under submission.

In its final order on the motion to tax, the court found, as argued by Defendants, that the costs sought to be recovered were largely incurred on whistleblower claims versus FEHA claims. Under this reasoning, though, the expert witness fees were not recoverable on the record presented because while they would be recoverable under FEHA were Plaintiff’s FEHA claims frivolous, they were not recoverable under Code of Civil Procedure section 1033.5.

Accordingly, the court’s order taxed the expert witness fees in their entirety - \$116,772.93. [2/2/26 order at 3-4.]

Apparently, however, Defendants had served a 998 offer on Plaintiff prior to trial, which she did not accept, that was not in the court’s record. [David Decl. (ROA #1399), ¶ 2 and Ex. A.

Legal Standard

Generally, a motion for reconsideration must be filed within 10 days of service on him of notice of entry of the order in question. Code Civ. Proc. § 1008(a). Defendants' motion was filed within this time frame. Moreover, as previously noted by the court and set forth below, the court retains the power to reconsider its own order regardless of the timing.

A motion for reconsideration made by a party must be based on new or different facts, circumstances, or law than those before the court at the time of the original ruling. Code Civ. Proc. § 1008(a). The motion must also be accompanied by an affidavit from the moving party that states: (1) what application was previously made; (2) when and to what judge; (3) what order was made; and (4) what new or different facts, circumstances or law are claimed to be shown. Code Civ. Proc. § 1008(a). A party seeking reconsideration also must provide a satisfactory explanation for the failure to produce the evidence at an earlier time. *New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 213.

The burden under section 1008 "is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at the trial." *New York Times Co. v. Superior Court, supra*, 135 Cal.App.4th at 212–213. The legislative intent was to restrict motions for reconsideration to circumstances where a party offers the court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. *Gilberd v. AC Transit* (1995) 32 Cal. App. 4th 1494, 1500. A party seeking reconsideration of a prior order based on "new or different facts, circumstances or law" must provide a satisfactory explanation for failing to present the information at the first hearing; i.e., a showing of reasonable diligence. *Garcia v. Hejmadi* (1997) 58 Cal. App. 4th 674, 690. The court cannot consider matters presented at the earlier hearing. Code Civ. Proc. §1008(f). Reconsideration cannot be granted based on claims the court misinterpreted the law in its initial ruling. *Gilberd v. AC Transit, supra*, 32 Cal. App. 4th at 1500.

Apart from a parties' motion, if the court itself "determines that there has been a change of law that warrants it to reconsider a prior order it entered, it may do so on its own motion and enter a different order." Code Civ. Proc. § 1008(c). Further, it should be noted, the court has the inherent power to reconsider its ruling if it believes it to be in error. *Le Francios v. Goel* (2005) 35 Cal.4th 1094, 1108; *Marriage of Barthold* (2008) 158 Cal.App.4th 1301, 1307-1308.

Discussion

Here, the different fact is the 998 offer of which the court was not aware.

Defendants did not bring it to the court's attention because, as they describe it, Plaintiff "did not argue that the expert witness fees included in the Memorandum of Costs were improper under California Code of Civil Procedure Section 1033.5." She did not expressly argue this. As noted above, however, the court took her to be implicitly arguing this by her statement that "*in the event*" the court found her claims frivolous Defendants could recover their expert witness fees. Otherwise, from the court's perspective, why would it matter if the court found her claims frivolous?

In any event, Defendants did not think they had to justify recovery of expert witness fees in the absence FEHA's recovery provision applying.

In the normal course, the court would have posted a tentative ruling that would have alerted Defendants to this issue, which they could have then addressed at the hearing. But this time, given the number of issues raised by the fee motion and the motion to strike or tax costs, no tentative ruling was posted. Nor did the specific issue of expert witness fees come up at the hearing.

The court finds that the lack of notice to Defendants of the conclusions the court was drawing from the record is a basis to reconsider the order taxing all their expert witness fees. *Marriage of Barthold* (2008) 158 Cal.App.4th 1301, 1307-1308 (finding court has inherent authority to reconsider final, post judgment order, as well as interim order, on its own motion even when that exercise is triggered by improper motion of party).

On this basis, the court reconsiders its prior order taxing Defendants' costs. This does not mean, however, that the court need award Defendants all their expert witness fees – or even any of them.

To shift recovery of expert witnesses, a 998 offer must be and have been made in good faith. Here, despite invitation to address the validity of the 998 offer, Plaintiff has not disputed its validity.

Even finding the 998 offer was valid, the court retains discretion whether to award expert witness costs. *Martinez*

		<i>v. Brownco Construction Co.</i> (2013) 56 Cal.4th 1014, 1026 (“Finally, section 998 expressly states an award of expert witness fees is discretionary.”); <i>Santantonio v. Westinghouse Broadcasting Co., Inc.</i> (1994) 25 Cal.App.4th 102, 121. Defendants originally sought \$116,772.93 in expert witness fees. In their recent motion, they offered a reduction of \$8,359.50. Based on Plaintiff’s original objections, the court will tax \$81,649.18, for an award of costs in the amount of \$35,123.75.
2.	2024-1424513 Brown vs. The Kroger Co	Plaintiff Colton Brown’s motion for a new trial is denied. The requirements and grounds for new trial are entirely statutory; they are stated in Code Civ. Proc. § 657, and are as follows: 1. Irregularity in the proceedings of the court, jury or adverse party, or any order of the court or abuse of discretion by which either party was prevented from having a fair trial. 2. Misconduct of the jury. 3. Accident or surprise, which ordinary prudence could not have guarded against. 4. Newly discovered evidence, material for the party making the application, which he could not, with reasonable diligence, have discovered and produced at the trial. 5. Excessive or inadequate damages. 6. Insufficiency of the evidence to justify the verdict or other decision, or the verdict or other decision is against law. 7. Error in law, occurring at the trial and excepted to by the party making the application. A motion for a new trial is a proper vehicle for relief following the erroneous grant of a motion for summary judgment. (Wegner et al., Cal. Practice Guide: Civil Trials and Evidence (The Rutter Group 2022) ¶ 18:196, citing <i>Collins v. Sutter Memorial Hospital</i> (2011) 196 Cal.App.4th 1, 22.) A court may also grant a partial new trial on some of the issues. (<i>Pacific Corporate Group Holdings, LLC v. Keck</i> (2014) 232 Cal.App.4th 294, 302.) Plaintiff moves for a new trial with respect to the Court’s 6/18/26 ruling granting Defendant Ralphs Grocery Company’s motion for summary judgment. Plaintiff bases his motion on Subd. (5), (6), and (7) of Code Civ. Proc., § 657. Procedurally, Plaintiff’s motion is defective and in violation of the Rules of Court. At 19 pages, it exceeds the maximum page limit of 15 pages set forth in CRC, Rule 3.1113(d). A memorandum exceeding the page limit “must be filed and considered in the same manner as a late-filed paper.” (CRC, Rule 3.1113(g).) A court may

refuse to consider a late-filed paper. (CRC, Rule 3.1300(d).) “A trial court has broad discretion under rule 3.1300(d) of the Rules of Court to refuse to consider papers served and filed beyond the deadline without a prior court order finding good cause for the late submission.” (*Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765.)

This is not the first time that Plaintiff has not complied with the Rules of Court.

Plaintiff’s separate statement in support of its opposition to Defendant’s motion for summary judgment likewise was not in compliance with CRC, Rule 3.1350.

Plaintiff’s motion is denied for the dual reasons that it fails to comply with the Rules of Court, and it lacks merit, as discussed below.

In reaching this decision, the Court has not considered Plaintiff’s Compendium of Evidence filed in support of his motion. (ROA 157; Code Civ. Proc., § 658.)

Plaintiff asserts the following arguments.

First, Plaintiff contends that the evidence supported a reasonable inference that the water was already on the floor when Mr. Wyant passed through the aisle at 11:18 a.m. and would have been discovered by a proper inspection. The only evidence that supports that the water was on the floor when Wyant passed through with his broom is that Plaintiff fell on water less than two minutes later. On the other hand, evidence was submitted that between the time of the sweep and Plaintiff’s fall, five individuals (including Wyant who was following the path of the broom/mop) walked directly over the area in question without difficulty and without slipping or falling. (Defendant’s Ex. B.) It is not reasonable to infer therefore that there was a large puddle of water on the floor which Wyant and four other customers walked over without noticing or slipping on.

Second, Plaintiff argues that whether an inspection satisfied the standard of care is ordinarily a question of fact for the jury. (*Sapp v. W.T. Grant Co.* (1959) 172 Cal.App.2d 89, 94 [whether the defendant’s inspection practice was “commensurate with the exercise of ordinary care” was “a question that was properly left with the jury to decide”]; *Bridgman v. Safeway Stores, Inc.* (1960) 53 Cal.2d 443, 447-448.) The Court’s ruling was based on the issue of Ralph’s notice of the alleged dangerous condition. Per *Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1206, Plaintiff had the burden of proving that Ralphs had actual or constructive knowledge of a

dangerous condition and time to correct it, or that Ralphs was able, by the exercise of ordinary care, to discover the condition. Plaintiff failed to do so. Plaintiff's evidence that the sweep should have been performed in an S motion does not establish a triable issue of fact as to whether Ralphs should have discovered (and remedied) water on the floor.

Third, Plaintiff takes issue with the Court's ruling on the objections to the Burns Declaration, stating that while the Court addressed Defendant's eight objections, it did not "identify whether it was sustaining or overruling Defendants' objections to the remainder of Mr. Burns' declaration." Plaintiff's argument here is confusing. (Motion at 15:24-16:1.) Defendant asserted only 8 separate objections to the Burns Declaration, as well as a blanket objection to the entire declaration, all of which were ruled upon.

Fourth, Plaintiff argues that he submitted direct evidence that Ralphs knew of the water before Plaintiff fell. Plaintiff cites to two pieces of evidence: Plaintiff's Deposition (Ex. F) and the Lujan Declaration (Ex. G), and states that immediately after the incident a Ralphs manager stated to Plaintiff and to the witness Bryce Lujan that he was already aware of the spill and had intended to have an employee stationed at the location to keep customers away from it before the incident occurred. (Exh. F at pp. 36:21-37:4; Exh. G at ¶ 4.) This is a misrepresentation of the evidence. This evidence does not establish that Ralphs was aware of water on the floor before the fall. The manager's statements occurred after being alerted to the water and Plaintiff's fall. No evidence was presented to show a spill of water before the sweep.

Fifth, Plaintiff contends that a deficiency in an opposing party's separate statement is not a mandatory ground for summary judgment. Code Civ. Proc., § 437c(b)(3) provides only that the failure to comply with the separate-statement requirement "may constitute a sufficient ground, in the court's discretion, for granting the motion." That discretion arises only where the moving party has first carried its own burden. Plaintiff is not wrong here. The Court acknowledged this and noted in its ruling, stating that the court in *Thatcher v. Lucky Stores, Inc.* (2000) 79 Cal.App.4th 1081, 1086 notes that "subdivision (b) of section 437c allows the court, in its discretion, to grant summary judgment if the opposing party fails to file a proper separate statement," so long as it is determined that the moving party meets its initial burden of proof.

Then, the Court found not only that Plaintiff failed to file a proper separate statement; but he additionally fails to demonstrate the existence of any triable issues of material fact as set forth below. The Court granted Defendant's motion on both grounds, expressly

		finding that Defendant met its burden in establishing that Plaintiff lacks evidence to support the duty element of his claims. (ROA 128.) Sixth, Plaintiff contends that the deposition of Ryan Wyant was necessary to the Court’s decision. Plaintiff did not request that the Court continue the motion pursuant to Code Civ. Proc., § 437c(h). This is not a reason to grant a motion for a new trial. Seventh, Plaintiff generally argues that there is insufficient evidence to justify the granting of the motion. Plaintiff repeats his arguments and seems to confuse the parties’ burdens. It is not Defendant’s burden to establish that it did not have actual or constructive knowledge of the water; it is Plaintiff’s. (See <i>Ortega v. Kmart Corp.</i>, <i>supra</i>, 26 Cal.4th at 1203.) Finally, Plaintiff’s argument regarding excessive damages (Code Civ. Proc., § 657(5) is nonsensical. It is axiomatic that one may complain of inadequate damages only where damages were found. No damages were awarded in the ruling that Plaintiff contests. Based on the foregoing, Plaintiff’s motion for a new trial is denied. Defendant’s request for judicial notice is granted. Defendant shall give notice.
4.	2026-1552790 Saadian vs. Beach Executive Plaza, LLC	Defendant Beach Executive Plaza, LLC’s (“Defendant”) Motion to Expunge Lis Pendens is granted. Defendant moves, under CCP section 405.22 et seq., for an order expunging the lis pendens filed and recorded by Plaintiffs Jonah Saadian and Brandon Saadian (collectively, “Plaintiffs”) on 3/11/26 in the Official Records of the Orange County Clerk-Recorder (see ROA 11). Defendant contends the lis pendens should be expunged, because Plaintiffs have not effected proper service and cannot meet their burden of showing the probable validity of their real property claim. The Court agrees that Plaintiffs did not comply with the pre-filing requirements of CCP section 405.22, which requires the claimant to, “prior to recordation of the notice, cause a copy of the notice to be mailed, by registered or certified mail, return receipt requested, to all known addresses of the parties <i>to whom the real property claim is adverse</i> and to all owners of record of the real property affected by the real property claim as shown by the latest county assessment roll.” (Code Civ. Proc., § 405.22, emphasis added.) The record reflects that there are five other persons with an interest in the

subject property, who would have an adverse interest to Plaintiffs filing of a lis pendens, and who did not receive a copy of the notice prior to its recording. Although the lis pendens may be “void and invalid” as to these persons (Code Civ. Proc., § 405.23), the record property owner, Defendant, does not deny that it did receive proper notice of the lis pendens. Thus, Defendant has not shown this procedural defect is grounds for granting its motion.

However, the Court agrees with Defendant that Plaintiffs have not shown the probable validity of their real property claim. In their complaint, Plaintiffs allege that Defendant breached a written agreement for the sale of the subject property, because Defendant allegedly cancelled the agreement by imposing a “unilateral ‘drop-dead’ date,” which was not expressly stated in the agreement. However, Plaintiffs acknowledge that the addendum to the agreement provides: “This sale is contingent upon obtaining unanimous written approval from all beneficiaries of the George Saadian Trust and from Louise Saadian. If Matthew Barkohanai, managing member of Beach Executive Plaza, LLC, notifies Buyer that he is unable to obtain unanimous approval, this Agreement shall terminate, and the \$180,000 deposit shall be refunded to Buyer.” (Compl. at ¶ 15.) Plaintiffs allege Barkohanai, on behalf of Defendant, “has made efforts and taken action to thwart the sale to Plaintiffs in bad faith,” including by purportedly failing to provide “additional information regarding the proposed implementation mechanics, tax treatment, and related structure issues before formalizing final written approval” from the beneficiaries. (Compl. at ¶¶ 16, 23.)

The Agreement is a “Standard Offer” form contract, which includes, among other provisions, a provision (in § 15) that, “The Parties shall each, diligently and in good faith, undertake all actions and procedures *reasonably required to place the Escrow in condition for Closing* as and when required by this Agreement. The Parties agree to provide all further information, and to execute and deliver all further documents, reasonably required *by Escrow Holder or the Title Company*” (emphasis added). This provision only requires the parties to provide the documents reasonably required to place the Escrow in condition for closing; it does not require Defendant to provide all documents necessary (e.g., obtaining a favorable tax opinion) to obtain “unanimous approval” from the beneficiaries, so that the contingency in the Addendum can be satisfied.

Moreover, the evidence reflects that Plaintiffs already obtained and distributed a tax opinion to the beneficiaries. However, Plaintiffs were apparently not able to persuade the beneficiaries to rely on this opinion. (ROA 17 [Morris Decl. at ¶¶ 12-15, Exhs. 7-9.) Nothing in the Agreement requires Defendant to obtain a tax opinion. As

		Defendant points out in its reply, to the extent it agreed to obtain a second tax opinion, this discussion was in connection with a <i>Letter of Intent dated April 6, 2026</i>, which was never signed or accepted, and not in connection with the subject agreement. (Reply at p. 2; see also ROA 17, Exh. 8.) In sum, the evidence reflects that “unanimous written approval from all beneficiaries of the George Saadian Trust and from Louise Saadian” was not obtained. Because Defendant had no duty to obtain the approval, it could not have breached the contract by not obtaining the same. As such, Plaintiffs have not shown they have a probable validity of prevailing on their real property claim. Thus, the Court grants the motion to expunge the lis pendens recorded on 3/11/26, in the Orange County Clerk-Recorder’s office as document no. 2026000072347, regarding the real property commonly known as 12235 Beach Blvd., Stanton, California 90680, and identified by Assessor’s Parcel numbers: 131-373-37; 131-373-38; 131-373-39. In connection with this motion, Defendant Beach Executive Plaza, LLC is awarded a total of \$12,060 in reasonable attorneys’ fees and costs, jointly and severally, against Plaintiffs Jonah Saadian and Brandon Saadian. (Code Civ. Proc., § 405.38.) The Court declines to rule on Defendant’s evidentiary objections (ROA 22), because they are not material to the disposition of the motion. Defendant shall give notice of the ruling.
5.	2026-1583700 Peter Yun as Representative of Emergency Committee to Save Huntington Beach Baptist Church of Huntington Beach vs. Gateway Seminary	Defendants Gateway Seminary’s, Adam Groza’s and Kevin Carrothers’ motion to expunge the lis pendens recorded by Peter Yun against the property located at 8121 Ellis Ave., Huntington Beach, CA 92646 is granted. (ROA 49.) Pursuant to Code Civ. Proc. §405.30, anyone with an interest in real property may move a court for an order expunging a <i>lis pendens</i>. A court “shall” grant a motion to expunge if either of the following conditions exists: (1) The pleading upon which the lis pendens is based does not contain a real property claim (Code Civ. Proc. §405.31); OR (2) The claimant has not established by a preponderance of the evidence the probable validity of the real property claim (Code Civ. Proc. §405.32). The burden of proof rests with the party responsible for filing the lis pendens. (<i>Amalgamated Bank v. Superior Court</i> (2007) 149 Cal.

App. 4th 1003, 1007; *Shah v. McMahon* (2007) 148 Cal. App. 4th 526, 529.)

Here, Plaintiff fails to meet the burden of proof necessary to sustain the lis pendens.

Specifically, Plaintiff fails to establish the probable validity of his claims.

The only party whom Plaintiff alleges was defrauded is the Church. (Complaint, ¶¶ 10-11.) The only party to whom Defendants allegedly breached a contractual promise to was the Church. (Complaint, ¶¶ 15-16.)

There are no facts in the Complaint that show privity between Plaintiff and Defendants. Because Plaintiff fails to establish privity or allege that he was personally defrauded, Plaintiff lacks standing to sue for fraud or breach of contract. (See *Gantman v. United Pac. Ins. Co.* (1991) 232 Cal. App. 3d 1560, 1566.)

Furthermore, Plaintiff cannot obtain declaratory relief claim as to the validity of a contract he is not a party to nor has any interest in. (See Code Civ. Proc., § 1060.) Plaintiff's request for an injunction is predicated on the first three causes of action and thus lacks merit as well.

In addition, the lis pendens is procedurally defective because Plaintiff failed to comply with Code Civ. Proc., § 405.22 which states among other things that "prior to recordation of the notice, cause a copy of the notice to be mailed, by registered or certified mail, return receipt requested, to all known addresses of the parties to whom the real property claim is adverse and to all owners of record of the real property affected by the real property claim as shown by the latest county assessment roll."

Plaintiff did not serve a copy of the Lis Pendens on Defendant Gateway and did not serve a copy via registered or certified mail, return receipt requested as required on the other defendants. Furthermore, Plaintiff recorded the Lis Pendens before serving any Defendants with a copy of the Lis Pendens. (Ganji Decl., ¶¶ 2-6, Exs. A-C.)

Code Civ. Proc., § 405.23 states that: "Any notice of pendency of action shall be void and invalid as to any adverse party or owner of record unless the requirements of Section 405.22 are met for that party or owner and a proof of service in the form and content specified in Section 1013a has been recorded with the notice of pendency of action." (See *McKnight v. Sup. Ct.* (1985) 170 Cal. App.

		3d 291, 303 (holding that a violation of the technical requirements of former Code Civ. Proc. § 409(d) was a ground justifying expungement); <i>Rey Sanchez Investments v. Sup. Ct.</i> (2016) 244 Cal. App. 4th 259, 263 (holding lis pendens was void and invalid when no proof of service was recorded with lis pendens).) Thus, based on the foregoing reasons, the motion is granted. Defendants' request for attorney fees is denied. Defendants do not state in the Notice whether the sanctions are sought against counsel, Plaintiff or both. "[C]onstitutional principles of due process require a notice of motion to identify the persons against whom monetary sanctions are being sought." (<i>Cromwell v. Cummings</i> (1998) 65 Cal.App.4th Supp. 10, 13 [citing <i>Blumenthal v. Superior Court</i> (1980) 103 Cal.App.3d 317, 320].) The failure to so specify precludes the requested fee order. Defendants shall give notice.
6.	2025-1471111 Kiannasr vs. General Motors LLC	Plaintiff Hassan Kiannasr's motion for attorney fees is granted in part. Plaintiff is awarded \$17,534.00 in attorney fees. Plaintiff moves for \$18,846.50 in attorney fees as the prevailing party under Civil Code section 1794, subdivision (d), following acceptance of Defendant's Code of Civil Procedure section 998 offer. Plaintiff also seeks a 0.3 lodestar enhancement of \$5,653.95. <u>Entitlement to Award</u> Under Civil Code section 1794, subdivision (d), a prevailing buyer may recover attorney fees based on actual time expended and reasonably incurred in prosecuting the action. Plaintiff accepted Defendant's Code of Civil Procedure section 998 offer, under which Defendant agreed to repurchase the subject vehicle for \$98,000 and to pay reasonably incurred attorney fees, costs, and expenses under Civil Code section 1794, subdivision (d), as determined by noticed motion. (Acosta Decl., ¶¶ 33–34.) Defendant does not dispute Plaintiff's entitlement to reasonable attorney fees, but challenges the amount requested. Accordingly, Plaintiff, as the prevailing party, is entitled to recover reasonable attorney fees under Civil Code section 1794, subdivision (d). <u>Standard of Review</u>

An award of attorneys' fees will be affirmed absent a showing the trial court abused its discretion. (*Jones v. Union Bank of California* (2005) 127 Cal.App.4th 542, 549 ["We must affirm an award of attorneys' fees absent a showing that the trial court clearly abused its discretion."]) Moreover, an abuse of discretion is shown only where an "award shocks the conscience or is not supported by the evidence." (*Ibid.*) "The only proper basis of reversal of the amount of an attorney fees award is if the amount awarded is so large or small that it shocks the conscience and suggests that passion and prejudice influenced the determination." (*Akins v. Enterprise Rent-A-Car Co. of San Francisco* (2000) 79 Cal.App.4th 1127, 1134.)

The above standard is an acknowledgment that "[t]he experienced trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong." (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.)

Lodestar Amount

"[T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.) "California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award." (*Ibid.*) "The reasonable hourly rate is that prevailing in the community for similar work." (*Ibid.*)

"'In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other case.'" (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 41; See also *Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1009.)

Hourly Rates

Plaintiff seeks a base lodestar of \$18,846.50 for 39.1 hours as follows:

Name	Hours	Hourly Rate
Anthony Greco	17.2	\$595
Christopher Urner	7.7	\$525

Jorge L. Acosta	3.1	\$450
Vazgen Pogosyan	2.0	\$450
Law Clerks & Paralegals	9.1	\$250

Plaintiff submits evidence concerning counsel's experience and prior awards approving the firm's rates. (Acosta Decl., ¶¶ 6–14, 22–26.) Plaintiff also submits evidence that the requested rates have been awarded in other Song-Beverly matters, including in Orange County. (Acosta Decl., ¶ 26; Urner Decl., ¶ 2.)

Defendant contends that all attorney work should be compensated at Acosta's \$450 hourly rate because the case was routine and higher-billing attorneys performed work that could have been performed by lower-billing attorneys or paralegals. Defendant notes that the case involved no depositions, discovery motions, dispositive motions, or trial.

However, Defendant does not submit evidence establishing that \$450 is the prevailing market rate for all attorneys who worked on this matter. Moreover, the relative simplicity of the case bears more directly on the reasonableness of the hours expended and staffing than on the applicable hourly rates.

Based on the foregoing, as well as the Court's own experience with similar cases, the Court finds the requested hourly rates reasonable.

Time Expended

Thereafter, "Civil Code section 1794 requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable." (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 34 [cleaned up internal quotations].) "A prevailing buyer has the burden of showing that the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount." (*Ibid.* [cleaned up internal quotations].)

"In evaluating whether the attorney fee request is reasonable, the trial court should consider "whether the case was overstaffed, how much time the attorneys spent on particular claims, and whether the hours were reasonably expended." (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 38.) "Reasonable compensation does not include compensation for 'padding' in the form of inefficient or duplicative efforts...." [Citations.] "A reduced award might be fully justified by a general observation that an attorney

overlitigated a case or submitted a padded bill or that the opposing party has stated valid objections.” ‘ ‘ (Ibid.)

“[V]erified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.” (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 396.)

Acosta states that the firm maintains contemporaneous electronic billing records and that he reviewed the records to remove redundant billing and nonessential clerical items. (Acosta Decl., ¶¶ 18–21.)

Defendant, in opposition, raises multiple objections.

Complaint and Template-Based Work

Defendant challenges 2.2 hours billed by Urner in connection with the Complaint: one hour reviewing the case file and 1.2 hours drafting the Complaint and related documents. Defendant argues that the Complaint was substantially based on a template and requests that the one-hour file review be disallowed and the drafting time reduced to 0.5 hour.

Although the Complaint likely utilized an existing template, 2.2 hours to review the file and prepare the pleading is not unreasonable. The use of templates may reduce the amount of time reasonably required, but it does not eliminate the need to review the client’s records and tailor the pleading to the particular case.

Defendant also highlights other billing entries it contends are excessive. However, Defendant does not explain in its opposition why those particular entries are unreasonable or identify the reductions sought. Merely highlighting the entries, without further analysis, does not provide a sufficient basis for a reduction.

The Court therefore declines to reduce the challenged time.

Duplicative and Administrative Work

Defendant also generally challenges repetitive review of case materials by multiple attorneys and attorney time spent on administrative tasks, relying primarily on highlighted entries in Exhibit A to the Martin Declaration. Defendant also requests that work performed by higher-billing attorneys be reduced to lower attorney or paralegal rates.

However, Defendant does not sufficiently identify in its memorandum the particular entries, the amount of time that should be disallowed, or a resulting numerical reduction. A general assertion that work was duplicative or could have been delegated does not provide a sufficient basis for a blanket reduction of all attorney time to \$450 per hour or all administrative work to \$250 per hour.

The Court therefore declines to impose the requested blanket reductions.

Fee Motion Work

Defendant challenges 5.5 hours included in the lodestar for reviewing the opposition, preparing the reply, and appearing at the hearing, arguing that the time was prospective and speculative.

In reply, Plaintiff represents that the estimate is close to the time actually incurred and notes that the nearly ten-page reply was prepared in response to Defendant's opposition. (Reply, p. 6; Urner Decl., ¶ 6.)

Although time reasonably incurred in connection with a fee motion is recoverable, the Court finds 5.5 hours somewhat excessive given the relatively straightforward nature of the fee dispute and counsel's familiarity with the applicable law. The Court finds 3 hours reasonable for reviewing the opposition, preparing the reply, and preparing for and appearing at the hearing.

Accordingly, the Court reduces the requested fee-motion time by 2.5 hours. At Urner's \$525 hourly rate, this results in a \$1,312.50 reduction.

Multiplier

Plaintiff additionally seeks a 0.3 enhancement, or \$5,653.95, based principally on the contingent nature of the representation, risk and delay in payment, counsel's expertise, and the result obtained.

In determining whether to apply a multiplier, the court considers a variety of factors that the court did not consider when determining the lodestar figure, such as the novelty and difficulty of the issues presented, the skill displayed in presenting them, the extent to which the nature of the litigation precluded other employment by the attorneys, and the contingent nature of the fee award. (See *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132-1134.) The court is not required to impose a multiplier; the decision is discretionary. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1241.) The

		contingent nature of fee award is relevant where it is “uncertain that the attorneys would be entitled to an award of fees even if they prevailed.” (<i>Weeks v Baker & McKenzie</i> (1998) 63 Cal.App.4th 1128, 1175.) On the other hand, the contingent nature is not generally sufficient where contingency is limited to whether or not the party will prevail. (<i>Id.</i>, at pp. 1174-1175.) A multiplier is more typically seen in cases where counsel undertakes a difficult case in the public interest, not a personal injury case brought by a single plaintiff to recover her own economic damages. (<i>Id.</i>, at p. 1174.) Here, the relevant factors do not support a multiplier. Plaintiff has not shown that the issues were novel or difficult, that the litigation required exceptional skill, or that the contingent risk exceeded the ordinary risk of nonrecovery. The case resolved before trial and did not involve complex proceedings or broader public-interest concerns. The Court therefore declines to apply a multiplier. <u>Total Award</u> The Court reduces the requested lodestar by \$1,312.50 (reflecting a 2.5-hour reduction in the requested fee-motion time at Urner’s \$525 hourly rate). The Court finds the resulting lodestar of \$17,534.00 reasonable and declines to apply the requested 0.3 enhancement. Costs will be determined through the memorandum-of-costs procedure. (See Code Civ. Proc., § 1032; Cal. Rules of Court, rule 3.1700(a)(1).) Accordingly, Plaintiff is awarded \$17,534.00 in attorney fees. Moving party to give notice
7.	2025-1501406 You vs. Mercedes-Benz USA LLC	<i>No tentative</i>
8.	2024-1396920 Centennial Bolt, Inc. vs. Cordova Bolt, Inc.	The Court grants Plaintiffs and Cross-Defendants Centennial Bolt, Inc. (“Centennial”) and Mark Cordova’s (“Mark”) Motion for attorney’s fees pursuant to Code of Civil Procedure section 425.16 for prevailing on their Special Motion to Strike (“Anti-SLAPP”). The Court awards Centennial and Mark the amount of \$62,886 in fees against Plaintiff and Cross-Defendant Cordova Bolt. <u>Legal Standard</u> A “prevailing defendant” (or cross-defendant) on an anti-SLAPP motion “shall be entitled to recover his or her attorney fees and costs.” (Code Civ. Proc., § 425.16, subd. (c)(1); <i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1133.)

Mandatory attorney's fees awarded under Code of Civil Procedure 425.16, subdivision (c), are those fees that the court deems reasonable. (*Ibid.*) Courts generally use a "lodestar" approach (i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate prevailing in the community for similar work) in setting an attorney's fee award under Code of Civil Procedure section 425.16. (*Id.* at p. 1136.)

Mark and Cordova are the prevailing parties on their Anti-SLAPP Motion

Here, Centennial Bolt and Mark prevailed on his Anti-SLAPP Motion in part. (ROA 200.) In the SLAPP Motion, Centennial sought to strike eight paragraphs from Cordova Bolt's 69-paragraph cross complaint (paragraphs 18, 19, and 64-69 which asserted the fraud claim) and eliminate four lines from paragraph 30, part of Centennial's claim for breach of fiduciary duty. The Court did not strike these paragraphs, instead striking two paragraphs from the general allegations, paragraphs 18 and 19, and modifying two more.

In opposition, Cordova Bolt argues that the Anti-SLAPP was not granted in its entirety, and really struck nothing of importance. Cordova Bolt argues that the "win" was illusory at best. Cordova Bolt cites to *Moran v. Endres* (2006) 135 Cal.App.4th 952 as instructive. There, defendants sought to dismiss the entire complaint, and instead obtained only the "most illusory victory". (*Moran v. Endres* (2006) 135 Cal.App.4th 952, 954.)

However, the Supreme Court has made clear that a special motion to strike may be directed to specific allegations of protected activity constituting a claim for relief within a pleaded count that also includes allegations of unprotected activity. (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 395 ["When the Legislature declared that a 'cause of action' arising from activity furthering the rights of petition or free speech may be stricken unless the plaintiff establishes a probability of prevailing, it had in mind allegations of protected activity that are asserted as grounds for relief."]; see *Newport Harbor Offices & Marina, LLC v. Morris Cerullo World Evangelism* (2018) 23 Cal.App.5th 28, 51 ["Because Baral permits a court to grant or deny an anti-SLAPP motion to specific allegations and claims arising from them, it anticipates a situation, such as here, in which the defendant prevails in part, and the plaintiff prevails in part, on an anti-SLAPP motion," thus allowing the trial court to determine whether one of the parties is entitled to an anti-SLAPP fee award.])

Thus, striking allegations from the Cross-Complaint was not an illusory victory after *Barnal*. Centennial and Mark succeeded in narrowing the factual basis for Cordova's claims.

The Court therefore finds Centennial and Mark to be the prevailing parties and therefore entitled to some fees.

Amount

To determine the appropriate fee award under the anti-SLAPP statute, the court applies the lodestar method. “The California Supreme Court has upheld the lodestar method for determining the appropriate amount of attorney fees for a prevailing defendant on an anti-SLAPP motion.” (*Mann v. Quality Old Time Service, Inc.* (2006) 139 Cal.App.4th 328, 342 [citing *Ketchum v. Moses, supra*, 24 Cal.4th at 1136].) Because Code of Civil Procedure section 425.16(c) is intended to compensate a defendant for the expense of responding to a SLAPP suit, the provision is broadly construed so as to effectuate the legislative purpose of reimbursing the prevailing defendant for expenses incurred in extracting herself from a baseless lawsuit. (*Wanland v. Law Offices of Mastagni, Holstedt & Chiurazzi* (2006) 141 Cal.App.4th 15, 22.)

The court has broad authority to determine the amount of reasonable fees. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) A reasonable fee is determined in the trial court’s discretion. (*Id.* at p. 1096; *Barlin v. Barlin* (1957) 156 Cal.App.2d 143.) In making its determination, the court should consider a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and any other circumstances in the case. (*PLCM Group v. Drexler, supra*, 22 Cal.4th at p. 1096.) Courts begin with an independent review of the evidence to determine the reasonableness of the hours actually spent litigating the matter and to assess whether there was padding, over-staffing, duplication or marked inefficiency. (*Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 272.)

Other factors courts consider include the development of the case, the complexity of the issues, and how long the court estimates it should have taken to perform the services. (*Maughan v. Google Technology, Inc.* (2006) 143 Cal.App.4th 1242, 1249.) After the courts determine the number of hours reasonably necessary to the conduct of litigation, the next step is to determine an appropriate hourly rate for the work performed, based on market trends in the particular region for that kind of work. (*Center for Biological Diversity v. County of San Bernardino* (2010) 188 Cal.App.4th 603, 619; *Chacon v. Litke* (2010) 181 Cal.App.4th 1234, 1260.)

Reasonable Hourly Rate

The reasonable market value of the attorney’s services is the measure of a reasonable hourly rate. This standard applies

regardless of whether the attorneys claiming fees charge nothing for their services, charge at below-market or discounted rates, represented the client on a straight contingent fee basis, or are in house counsel. (*PLCM Group, Inc. v. Drexler, supra*, 22 Cal.4th at p. 1094.) To determine that reasonable market value, the court must determine whether the requested rates are within the range of reasonable rates charged by and judicially awarded to comparable attorneys for comparable work. (*Children’s Hospital & Medical Center v. Bonta* (2002) 97 Cal.App.4th 740, 783.) Some of the factors to be considered in determining whether counsel’s rates are reasonable include: (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by counsel; and (3) the contingent nature of the fee award. (*Serrano v. Priest* (1977) 20 Cal.3d 25, 49.) Additional factors that may be considered include the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney’s reputation, and the undesirability of the case. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1139.)

The party requesting fees has the initial burden of producing evidence sufficient to support the reasonableness of the billing rates requested. (*See Davis v. City of San Diego* (2003) 106 Cal.App.4th 893, 903.)

Here, Counsel Douglas Hedenkamp billed at \$880 per hour and Tyler Palmer billed at \$550 per hour. These rates are within the range of reasonable for litigation of this type in Orange County.

Hours Reasonably Expended

In challenges to the reasonableness of the number of hours billed, “it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence.” (*Premier Med. Mgmt. Sys., Inc. v. Cal. Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564.) Actual time records need not be submitted so long as the court has sufficient and reliable information upon which to exercise its discretion. (*Raining Data Corp. v. Barrenechea* (2009) 174 Cal.App.4th 1363, 1375 [stating records not required and finding counsel declarations describing work and hours expended by category sufficient]; *Syers Properties III, Inc. v Rankin* (2014) 226 Cal.App.4th 691, 698-699.)

Here, Counsel provides billing statements to show the time spent on the Anti-SLAPP and this Motion.

Moving Parties were only *partially* successful on their Anti-SLAPP Motion, not eliminating any causes of action. (*See ComputerXpress, Inc. v. Jackson* (2001) 93 Cal.App.4th 993, 1016–1021, “The

		approach adopted in the cases applying those analogous statutes, under which partial success reduces but does not eliminate the entitlement to attorney fees, therefore should be applied here.”; <i>see also Mann v. Quality Old Time Service, Inc.</i> (2006) 139 Cal.App.4th 328, 345.) Based on the court’s own knowledge, the nature of the work performed in this case, and the evidence provided by the parties, the Court reduces the requested amount of fees for work on unsuccessful claims and some duplication of effort between the two billing attorneys. The Court finds that \$62,886 fairly compensates Cross-Defendants for the results achieved in pursuing the Anti-SLAPP motion and avoids reimbursing them for the objectives that were not attained. Centennial and Mark are ordered to serve notice.
10.	2025-1521814 Nguyen vs. Nguyen	Plaintiff Paul Nguyen’s motion for summary adjudication on his second amended complaint (“SAC”) against defendants Julie H. Dao and JD Escrow is continued to October 14, 2026. No later than September 25, 2026, Plaintiff is to file a revised separate statement of material undisputed facts in compliance with Code of Civil Procedure section 437c(b)(1) and CRC 3.1350(d), (h). Defendants may file a response to the revised separate statement no later than October 2, 2026. Code of Civil Procedure section 437c(b)(1) requires each motion for summary judgment or adjudication to be accompanied by a separate statement “setting forth plainly and concisely all <i>material facts</i> that the moving party contends are undisputed. Each of the material facts stated shall be followed by a reference to the supporting evidence.” (Italics added.) California Rules of Court, rule 3.1350(d)(2) states: “The separate statement should include only material facts and not any facts that are not pertinent to the disposition of the motion.” Under the Rules of Court, “Material facts’ are facts that relate to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion and that could make a difference in the disposition of the motion.” CRC 3.1350(a)(2). CRC 3.1350 also sets forth the required form of the separate statement. Each verbatim restatement of an issue for summary adjudication is to be directly followed by the material facts and supporting evidence the moving party relies on for summary adjudication of that issue. CRC 3.1450(d)(1) and (3), (h). Plaintiff’s separate statement does not comply with these directives.

Plaintiff's separate statement sets out all four issues verbatim and, then, *below* all of these re-statements, sets out 95 undisputed statements of fact ("UMF") in about 20 pages. These are not broken down by noticed issue. Rather, for each noticed issue Plaintiff cites the statements of fact in support. For example, for Issue no.2: "Supporting UMFs: UMFs 1–10, 15–20, 21–34, 61–65, 76–78, and 84–89."

This is not in compliance with CRC 3.1350(d) and (h).

This statement and the opposing separate statement (§ 10:188) are intended to permit the judge to *determine quickly* whether the motion is supported by sufficient undisputed facts.

[*Ducksworth v. Tri-Modal Distribution Services* (2020) 47 CA5th 532, 540, 261 CR3d 108, 113 (reversed on other grounds by *Pollock v. Tri-Modal Distribution Services, Inc.* (2021) 11 C5th 918, 281 CR3d 498)]

Cal. Prac. Guide Civ. Pro. Before Trial Ch. 10-C §10:94.1 (bold added).

This goal cannot be achieved with the current form of Plaintiff's separate statement. Besides the lack of physical organization required by CRC 3.1350(h), Plaintiff's separate statement is not limited to *material* facts that can be determined to correspond to required elements for any of the causes of action.

The paragraphs in a separate statement should be limited to facts that address the elements of a cause of action or an affirmative defense. (See Code Civ. Proc., § 437c, subd. (b)(1); rule 3.1350(a)(2), (d)(2).) The statute and Rules of Court do not preclude litigants from including background, nonmaterial information in their papers as long as they include a cite to the evidence, but nonmaterial facts should not be included in the separate statement. The point of the separate statement is not to craft a narrative, but to be a concise list of the material facts and the evidence that supports them. "The separate statement serves two important functions in a summary judgment proceeding: It notifies the parties which material facts are at issue, and it provides a convenient and expeditious vehicle permitting the trial court to hone in on the truly disputed facts." (*Collins v. Hertz Corp.* (2006) 144 Cal.App.4th 64, 74, 50 Cal.Rptr.3d 149.) There is

		nothing convenient or expeditious about the separate statements submitted in this case. <i>Beltran v. Hard Rock Hotel Licensing, Inc.</i> (2023) 97 Cal.App.5th 865, 875.
11.	2025-1526591 Logan vs. Hillis	The Demurrer brought by Cross-Defendant A Place for Rover, Inc. is overruled in its entirety. Initially, the Court grants judicial notice of the Cross-Complaint filed by Vicky Hillis on February 23, 2026, pursuant to Evidence Code section 452, subdivision (d). The request to take judicial notice of the Terms of Service offered by Cross-Defendant, however, is denied. “[T]he existence of a contract between private parties cannot be established by judicial notice under Evidence Code section 452, subdivision (h).” (<i>Gould v. Maryland Sound Industries, Inc.</i> (1995) 31 Cal.App.4th 1137, 1145; See also <i>The Travelers Indemnity Co. of Connecticut v. Navigators Specialty Ins. Co.</i> (2021) 70 Cal.App.5th 341, 354-355.) “As in this case, the ‘fact’ a contract exists between the parties is frequently the subject of reasonable dispute. Furthermore, when such disputes arise there are no ‘sources of reasonably indisputable accuracy’ such as treatises or encyclopedias to which the court can turn to resolve the issue. Rather, the court must rely on the testimony of the parties and their witnesses whose perceptions, memory and bias may be the subject of vigorous dispute” (<i>Gould v. Maryland Sound Industries, Inc.</i> (1995) 31 Cal.App.4th 1137, 1145.) Consequently, “before a trial court could find that the existence of a contract was not reasonably subject to dispute the court would have to engage in the kind of fact-finding appropriate for a trial on the merits, not for a hearing on demurrer.” (<i>Id.</i> at p. 1146.) “[A] court cannot simply look at a piece of paper and conclude as a matter of law it is a contract between the parties.” (<i>Ibid.</i>) Here, Cross-Complainant objects to Cross-Defendant’s Request for Judicial Notice. (See Opposition: 4:7-24.) While Cross-Complainant indicates she does “not deny for present purposes that her platform use was subject to Rover terms,” she nonetheless disputes assent to the <i>specific</i> terms offered by Cross-Defendant, within its Exhibit D. (<i>Ibid.</i>) As noted by Cross-Complainant, “Rover offers no declaration from a custodian or account-system witness establishing what version Hillis received, when and how she assented, or whether she opted out.” (Opposition: 4:13-15.) While Cross-Complainant proceeded to offer argument regarding the terms included within Exhibit D, Complainant nonetheless disputes having consented thereto and this dispute cannot be resolved on demurrer.

Scott v. JPMorgan Chase Bank, N.A. (2013) 214 Cal.App.4th 743 (*Scott*), cited by Cross-Defendant, is distinguishable. In *Scott*, the Court of Appeals affirmed judicial notice of a Purchase and Assumption Agreement between the FDIC and JPMorgan, concerning the assets and liabilities of Washington Mutual, on the basis the document was an official act of the FDIC and was not reasonably subject to dispute, in part due to the terms being publicly posted on the FDIC web site. (*Id.* at p. 753-754.) It is within *this* context, wherein the *Scott* Court explained: “Where, as here, judicial notice is requested of a *legally operative* document – like a contract – the court may take notice not only of the fact of the document and its recording or publication, but also facts that clearly derive from its *legal effect*.” (*Id.* at p. 754.)

“*Scott* is inapposite because the document being judicially noticed in that case was a *government* document and was accordingly governed by Evidence Code section 452, subdivision (c), under which judicial notice may be taken of ‘[o]fficial acts of the legislative, executive, and judicial departments of the United States and of any state of the United States.’” (*The Travelers Indemnity Co. of Connecticut v. Navigators Specialty Ins. Co.* (2021) 70 Cal.App.5th 341, 354.) “*Scott* does not provide authority allowing a court to take judicial notice of a contract between *private parties*.” (*Ibid.*)

Additionally, regardless, the *Scott* Court noted that judicial notice is appropriate only when there is no dispute as to the authenticity of the relevant agreement. (*Scott v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 743, 755.) As noted above, Cross-Complainant disputes being bound by the terms offered by Cross-Defendant.

Based on all the above, the Request for Judicial Notice, as directed towards the Terms of Service, is denied.

Proceeding to the remainder of the demurrer, “[w]e treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of law. [Citation.] We also consider matters which may be judicially noticed.” (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The function of a demurrer is therefore limited to testing the sufficiency of a complaint. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) “In reviewing the ruling on a demurrer, a court cannot consider...the substance of declarations, matter not subject to judicial notice, or documents judicially noticed but not accepted for the truth of their contents.” (*Ibid.*)

Cross-Defendant demurrers pursuant to Code of Civil Procedure section 430.10, subdivision (a), for lack of subject matter jurisdiction. In putting forth this argument, Cross-Defendant relies on an alleged arbitration agreement and choice of forum provision, included within the Terms of Service; however, as the Terms of Service are not subject to judicial notice, this argument fails.

Moreover, “[t]he submission of a dispute to private arbitration does not oust the superior court of jurisdiction.” (*Dial 800 v. Fesbinder* (2004) 118 Cal.App.4th 32, 44.) Similarly, a forum selection clause within a contract does not deprive the Superior Court of jurisdiction. (See *Korman v. Princess Cruise Lines, Ltd.* (2019) 32 Cal.App.5th 206, 222.)

Thereafter, citing *Sportsman v. A Place for Rover, Inc.* (N.D. Cal. 2021) 537 F.Supp.3d 1081 (*Sportsman*), Cross-Defendant seems to assert that any individual dog-walker was an independent contractor, such that liability does not attach to Cross-Defendant. (Demurrer: 3:24-4:7.)

Notably, Cross-Defendant did *not* request the Court take judicial notice of any factual finding within *Sportsman* and even assuming it had, “neither a finding of fact made after a contested adversary hearing nor a finding of fact made after any other type of hearing can be indisputably deemed to have been a correct finding.” (*Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1568.) “A court may take judicial notice of [another] court’s action, *but may not use it to prove the truth of the facts found and recited.*” (*Steed v. Department of Consumer Affairs* (2012) 204 Cal.App.4th 112, 120.)

Nor has Cross-Defendant established application of collateral estoppel, such as to bind Cross-Complainant to the decision in *Sportsman*. (*Johnson v. GlaxoSmithKline, Inc.* (2008) 166 Cal.App.4th 1497, 1507-1508.)

Based on the above, the factual findings in *Sportsman* are irrelevant herein and do *not* establish that Kenny Davis was an independent contractor.

Moreover, in contrast to Cross-Defendant’s assertion, the Cross-Complaint repeatedly alleges that Kenny Davis was an employee of Rover, Inc. (See ¶6, ¶7, ¶9 and ¶10 of Cross-Complaint.) Within the Reply, Cross-Defendant suggests that additional factual allegations are necessary to support this allegation; however, the allegation is an appropriate ultimate fact, that the Court is required to accept as true, for purposes of demurrer. (See *Skopp v. Weaver* (1976) 16 Cal.3d 432, 437.)

		Thereafter, the Demurrer asserts that Cross-Complainant's claims fail as "judicially noticed Terms hold Rover is not liable to cross-complainant." (Demurrer: 3:2-3; See also 8:12-25.) Cross-Defendant asserts that liability fails, based on release and indemnity language included within the Terms of Service. (Demurrer: 9:1-10:20.) However, given the Court cannot take judicial notice of the Terms of Service, these arguments fail. At best, in addressing the substance of the allegations in the Cross-Complaint, the Demurrer asserts Cross-Complainant failed to allege damages, to support the claim for negligence. (See Demurrer: 8:8-10.) However, the Cross-Complaint alleges Defendant's negligence caused damage to Complainant, by way of her exposure to liability, defense costs, and potential judgment. (See ¶16 of Cross-Complaint.) As noted by Complainant, where the tort of another has led one to incur attorneys' fees, defending an action by a third party, such fees constitute tort damages. (See <i>Prentice v. North Am. Title Guaranty Corp.</i> (1963) 59 Cal.2d 618, 620-621 and <i>Sooy v. Peter</i> (1990) 220 Cal.App.3d 1305, 1310.) "A person who through the tort of another has been required to act in the protection of his interests by bringing or defending an action against a third person is entitled to recover compensation for the reasonably necessary loss of time, attorney's fees, and other expenditures thereby suffered or incurred." (<i>Prentice v. North Am. Title Guaranty Corp.</i> (1963) 59 Cal.2d 618, 620; See also <i>Guinnane Construction Co., Inc. v. Chess</i> (2026) 119 Cal.App.5th 689, 699.) Based on all the above, the Demurrer to the Complaint brought by A Place for Rover, Inc. is overruled. Cross-Defendant shall file its Answer to the Cross-Complaint, within 10 days of this order.
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